



United States
Attorney's Office
Eastern District of New York



Two Pharmacists Convicted for Illegal Distribution of Oxycodone

Wednesday, February 12, 2025

For Immediate Release

U.S. Attorney's Office, Eastern District of
New York

Defendants Conspired to Fill Fake Prescriptions for Oxycodone Pills Written by a Doctor's Receptionist and Distributed to Street Drug Dealers for Cash

Earlier today, a federal jury in Brooklyn returned guilty verdicts against licensed pharmacists Yousef Ennab and Mohamed Hassan on all counts of a superseding indictment charging them with conspiracies to dispense and distribute oxycodone, as well as distribution and possession with intent to distribute oxycodone. The verdict followed a three-week trial before United States District Judge Ann M. Donnelly. When sentenced, the defendants each face up to 60 years in prison.

John J. Durham, United States Attorney for the Eastern District of New York; Frank A. Tarentino III, Special Agent in Charge, Drug Enforcement Administration, New York Division (DEA); Naomi Gruchacz, Assistant Special Agent in Charge, U.S. Department of Health and Human Services, Office of Inspector General (HHS-OIG); Harry T. Chavis, Jr., Special Agent in Charge, Internal Revenue Service Criminal Investigation, New York (IRS-CI); Jessica S. Tisch, Commissioner, New York City Police Department (NYPD); Jocelyn E. Strauber, Commissioner, New York City Department of Investigation (DOI); and Dr. James V. McDonald, Commissioner, New York State Department of Health, announced the verdicts.

"The defendants abused their access to oxycodone and violated the trust placed in them as pharmacists by illegally agreeing to supply drug dealers with tens of thousands of pills to sell on the streets of our district with zero regard for the immense harm this dangerously addictive narcotic has caused," stated United States Attorney Durham. "Pharmacists have a responsibility to prevent the illegal flow of drugs from their businesses, but these defendants only cared about lining their pockets with cash. With today's verdict they will soon learn there is a reckoning for their criminal conduct that has contributed to the opioid epidemic."

United States Attorney Durham expressed sincere thanks to his team of prosecutors and paralegals and all of the law enforcement partners whose tireless efforts contributed to the convictions of these defendants and their co-conspirators. They include the Federal Bureau of Investigation, the Office of the New York State Comptroller, the New York Attorney General's Medicaid Fraud Control Unit and the New York National Guard.

"Today's verdict against Yousef Ennab and Mohamed Hassan sends a strong message to anyone in the medical profession willing to betray their patients' trust," stated DEA New York Special Agent in Charge Tarentino. "Pharmacists who abuse their license, a license to help and promote the health and safety of others, will be prosecuted to the fullest extent of the law. This abuse is a breach of trust that not only undermines public confidence but also causes irreputable harm and erodes the foundation of integrity which the public relies on. The DEA and our partners will continue to target those individuals who abuse their authority and profit from fueling the national opioid crisis."

"The pharmacists convicted in this case chose to dispense illegally prescribed controlled substances to patients and accept cash kickbacks to do so, which is especially egregious given the ongoing opioid epidemic," stated HHS-OIG Special Agent in Charge Gruchacz. "HHS-OIG will continue to work with our law enforcement partners to ensure health care providers involved in schemes that threaten patient safety are held accountable."

"These two men used their positions as pharmacists to scheme and cheat the system, filling their pockets with the money of the vulnerable and addicted. Yousef Ennab and Mohamed Hassan had little regard for the safety and well-being of their clients, and today a jury of their peers found them guilty of their criminal behavior. This conviction was made possible with the collaborative efforts of our federal and local partners, and now both defendants will soon be faced with sentencing," stated IRS-CI Special Agent in Charge Chavis.

"Whether illegal drug transactions occur on a street corner or in brick-and-mortar pharmacies masquerading as legitimate businesses, the pushers are fueling addiction," stated NYPD Commissioner Tisch. "The numbers here are staggering—over 1.2 million pills exchanged with a street value of approximately \$24 million. While the full extent of the harm is unquantifiable, the guilty verdicts send a clear message that wherever you illegally distribute drugs, your operation will be shut down and you will go to jail. I thank the investigators in the NYPD, in the U.S. Attorney's Office, and across numerous law enforcement agencies for their joint effort to eradicate poison from our streets."

"The defendants' criminal conduct, and that of their co-conspirators, flooded our city with 1.2 million pills of highly addictive oxycodone. Their convictions make clear that DOI, the U.S. Attorney's Office for the Eastern District of New York, and all of our partner law enforcement agencies involved in this investigation are committed to bringing to justice those responsible for the distribution of dangerous drugs," stated DOI Commissioner Strauber.

"The Department takes professional and medical misconduct very seriously, with the health and safety of New Yorkers and our communities being of utmost concern," stated New York State Department of Health Commissioner McDonald. "The State Department of Health's Bureau of Narcotic Enforcement

will continue to remain vigilant and collaborate with law enforcement agencies to protect the public health by combatting diversion and safeguarding the legitimate use of controlled substances in health care."

As proven at trial, Hassan and Ennab were licensed pharmacists who participated in a large-scale scheme using illegal medical prescriptions to obtain oxycodone for distribution on the streets of New York City. Hassan held ownership stakes in more than a dozen pharmacies, where were located in Brooklyn, Queens and Staten Island and did business under the names Nile RX, Nile Ridge, Nile City, Sunset Corner, Prospect Care, Downtown RX and Forest Care, among others. Ennab was the supervising pharmacist at Forest Care, one of Hassan's pharmacies in Staten Island.

The scheme relied on filling illegally issued prescriptions for 30-day supplies of oxycodone 30 mg that were written out of a Brooklyn medical practice operating as a pill mill, often for patients that the resident doctor at the practice had never examined. Oxycodone 30 pills are high in strength and are prescribed to cancer patients, for instance. In some cases, the prescriptions were for individuals whose identities had been stolen and were not patients of the practice. The prescriptions were then filled at pharmacies controlled by Hassan, including the pharmacy where Ennab worked. Hassan and Ennab conspired with other drug dealers to effect the distribution of the illegally obtained oxycodone. One of the drug dealers picked up the oxycodone from the pharmacies in exchange for cash payments to Hassan and Ennab. Hassan and other pharmacist co-conspirators also billed insurance companies for the pills even though they had no legitimate medical purpose. The trial evidence included video footage of Ennab taking a cash payment from one of the drug dealers, Michael Kent, while handing over multiple prescriptions for oxycodone for sham patients. In total, the scheme resulted in the illegal distribution of more than 1.2 million pills of oxycodone worth more than \$36 million in retail street value.

Six co-defendants, including Dr. Somsri Ratanaprasatporn, her receptionist Leticia Smith and pharmacists Bassam Amin and Omar Elsayed, previously pleaded guilty based on their involvement in the scheme and are awaiting sentencing. A seventh co-defendant, Michael Kent, previously pleaded guilty and was sentenced to nine years' incarceration.

These convictions are part of an Organized Crime Drug Enforcement Task Forces (OCDETF) operation led by the U.S. Attorney's Office and the DEA. OCDETF identifies, disrupts, and dismantles the highest-level criminal organizations that threaten the United States using a prosecutor-led, intelligence-driven, multi-agency approach. Additional information about the OCDETF Program can be found at <https://www.justice.gov/OCDETF>.

Assistant United States Attorneys Laura Zuckerwise, Victor Zapana and Gilbert M. Rein are in charge of the prosecution with assistance from Paralegal Specialists Rachel Friedman and Nadya Osman. Assistant United States Attorney Claire Kedeshian is handling forfeiture matters.

The Defendants:

YOUSEF ENNAB

Age: 27

Brooklyn, New York

MOHAMED HASSAN

Age: 34

Brooklyn, New York

Co-Defendants Who Pleaded Guilty:

LETICIA SMITH

Age: 54

Brooklyn, New York

BASSAM AMIN

Age: 69

Brooklyn, New York

OMAR ELSAYED

Age: 28

Hackensack, New Jersey

MICHAEL KENT

Age: 49

Brooklyn, New York

ANTHONY MATHIS

Age: 55

New Windsor, New York

Dr. SOMSRI RATANAPRASATPORN

Age: 75

Staten Island, New York

RAYMOND WALKER

Age: 70

Brooklyn, New York

E.D.N.Y. Docket No. 22-CR-464 (AMD)

Contact

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Two Pharmacists Sentenced to Years in Prison for Illegal Distribution of Oxycodone

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PRESS RELEASE

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Eastern District of New York

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